

OPERATING AGREEMENT

OF

[COMPANY NAME], LLC

A FLORIDA PROTECTED SERIES LIMITED LIABILITY COMPANY

(Member-Managed — S Corporation)

THIS OPERATING AGREEMENT (this "Agreement") of [COMPANY NAME], LLC, a Florida protected series limited liability company (the "Company"), is made and entered into effective as of [DATE] (the "Effective Date"), by and among the undersigned members (each a "Member" and collectively the "Members").

RECITALS

A. The Company was formed as a Florida limited liability company by the filing of Articles of Organization with the Florida Department of State, Division of Corporations (the "Department").

B. The Company is a **protected series limited liability company** within the meaning of ss. 605.2101–605.2802, Florida Statutes, having designated, or intending to designate, one or more protected series by filing one or more Protected Series Designations with the Department.

C. The Members intend by this Agreement to set forth the terms governing the Company, each Protected Series designated by the Company, and the relations among the Company, each Protected Series, and the Members.

NOW, THEREFORE, the Members adopt the following as the operating agreement of the Company and of each Protected Series:

ARTICLE 1 — THE COMPANY

1.1 Definitions. Capitalized terms have the meanings set forth in Article 2 or in the Section in which they are used.

1.2 Formation; Status as Protected Series LLC. The Company is a limited liability company organized under the Florida Revised Uniform Limited Liability Company Act, Chapter 605, Florida Statutes (the "Act"). Upon the filing of its first Protected Series Designation with the Department, the Company is, and shall be identified in its records and dealings as, a *protected series limited liability company* governed by the Act, including ss. 605.2101–605.2802 (the "Protected Series Provisions"). If at any time no Protected Series of the Company is in existence, the Company shall continue as a Florida limited liability company governed by this Agreement

(excluding the provisions specific to Protected Series) until a new Protected Series Designation is filed.

1.3 Name; Names of Protected Series. The name of the Company is [COMPANY NAME], LLC. The name of each Protected Series shall be as set forth in its filed Protected Series Designation and its Series Exhibit. If the Company changes its name, the Administrative Member shall promptly make all filings required to conform the name of each Protected Series.

1.4 Purposes and Powers. The purpose of the Company, and of each Protected Series, is to engage in any lawful business, purpose, or activity for which limited liability companies may be organized under the Act, together with any additional purpose set forth in the Articles of Organization and, as to a Protected Series, any additional purpose set forth in its Series Exhibit. An additional purpose so stated is cumulative and does not limit the general purpose stated in this Section. The Company, and each Protected Series in its own name, shall have all powers conferred by the Act, including with respect to each Protected Series the power to enter into and enforce contracts; to acquire, own, hold, improve, lease, encumber, and convey real, personal, and intangible property; to grant liens and security interests in its Associated Assets; to open and maintain deposit and investment accounts; to sue and be sued; and to conduct its activities and affairs in its own name, all as contemplated by s. 605.2103, Florida Statutes.

1.5 Principal Office. The principal office of the Company is [PRINCIPAL ADDRESS], or such other place as a Majority in Interest may determine. A Protected Series may maintain its own place of business as determined by a Majority in Interest.

1.6 Registered Agent and Registered Office. The registered agent and registered office of the Company shall be as stated in the records of the Department. As required by the Act, the registered agent and registered office of the Company shall also serve as the registered agent and registered office for each Protected Series. Service of process, notice, or demand on a Protected Series may be made as provided by law, including s. 48.062, Florida Statutes.

1.7 Term. The Company's existence is perpetual unless the Company is dissolved and wound up in accordance with this Agreement and the Act. No Protected Series may have a duration extending beyond the existence of the Company.

1.8 Location of Records. The records of the Company and of each Protected Series — including the records required by Article 8 — shall be maintained at the Company's principal office or at such other location (including secure electronic storage) as the Administrative Member determines, and shall at all times be retrievable in perceivable form.

1.9 Filings. The Administrative Member shall execute and cause to be filed with the Department all records the Act requires or permits, including Protected Series Designations, amendments thereto, statements of change, annual reports, and statements of dissolution, and shall take all other action necessary to maintain the Company and each Protected Series in good standing.

1.10 How Assets Are Associated. An asset becomes an Associated Asset of a Protected Series, or of the Company, by the records required under Article 8 and s. 605.2301, Florida Statutes.

1.11 Waiver of Partition Rights. Each Member irrevocably waives any right to maintain an action for partition or any similar action with respect to any property of the Company or of any Protected Series.

ARTICLE 2 — DEFINITIONS

2.1 "Act" means the Florida Revised Uniform Limited Liability Company Act, Chapter 605, Florida Statutes, as amended, including the Protected Series Provisions.

2.2 "Administrative Member" means the Member designated under Section 5.8 to perform the ministerial functions assigned to that role by this Agreement, and any successor so designated. The Administrative Member has no authority beyond that expressly conferred by this Agreement or by a Majority in Interest.

2.3 "Associated Asset" means an asset of a Protected Series, or of the Company, that satisfies the recordkeeping requirements of s. 605.2301, Florida Statutes, and Article 8 of this Agreement.

2.4 "Associated Liability" means a liability incurred by, contracted for, or otherwise existing with respect to a particular Protected Series or the Company, as reflected in the records maintained under Article 8.

2.5 "Associated Member" has the meaning given in s. 605.2302, Florida Statutes — a member of the Company whom an operating agreement designates as an associated member of a Protected Series. This Agreement designates none: no Protected Series established under it has an Associated Member, and each Protected Series is owned by the Company as provided in Section 3.6 and managed as provided in Section 5.2.

2.6 "Company" means [COMPANY NAME], LLC.

2.7 "Immediate Family Member" means, as to any Member, (a) any ancestor of that Member or descendant of a grandparent of that Member (each an "Individual Family Member," and including persons legally adopted before age 18), or (b) a trust or other entity for the benefit of one or more Individual Family Members, provided all beneficial interests in that entity are held by such persons; a trust is not excluded merely because a remainder beneficiary is not an Individual Family Member.

2.8 "Incapacitated" means, as to any person, that (a) a court of competent jurisdiction has determined the person to be incapacitated or has appointed a guardian of the person's property, or (b) two licensed physicians have certified in writing that the person is unable to manage the person's financial affairs. A person ceases to be Incapacitated upon a court order restoring capacity or a written certification by two licensed physicians that the person is again able to manage the person's financial affairs.

2.9 "Involuntary Transfer" means any Transfer by which a Member or transferee is deprived or divested of any right, title, or interest in a Membership Interest other than voluntarily, including (a) a Transfer to or for the benefit of a judgment creditor pursuant to court order, subject in all events to Section 10.6, (b) a Transfer in connection with reorganization, insolvency, bankruptcy, or receivership, (c) a Transfer to a public officer or agency under any abandoned-property or escheat law, and (d) a Transfer to a spouse or former spouse in connection with dissolution of marriage or marital separation.

2.10 "Majority in Interest" means one or more Members holding, in the aggregate, more than fifty percent (50%) of the Percentage Interests then held by Members, excluding for all purposes any Percentage Interest held by a transferee, assignee, beneficiary, or holder of a charging order who has not been admitted as a Member.

2.11 "Member" means each person identified as a member on Exhibit A and each person admitted as a member in accordance with this Agreement, in each case until dissociated.

2.12 "Membership Interest" means a Member's entire interest in the Company, including the Member's interest in capital, profits, and distributions of the Company, and all rights of a member under the Act and this Agreement.

2.13 "Percentage Interest" means, as to each Member, the percentage or fractional interest set forth for that Member on Exhibit A, as adjusted from time to time under this Agreement. Membership interests are of a single class.

2.14 "Protected Series" or "PS" means a protected series of the Company established under s. 605.2201, Florida Statutes, and identified in a Series Exhibit.

2.15 "Protected Series Designation" means a designation of a protected series filed with the Department under s. 605.2201, Florida Statutes, as amended from time to time.

2.16 "Series Exhibit" means, for each Protected Series, the exhibit to this Agreement (each numbered PS-1, PS-2, and so on) setting forth the terms specific to that Protected Series, including its purpose, its capital, and its Associated Assets. Each Series Exhibit is a part of this Agreement.

2.17 "Transfer" means any assignment, transfer, conveyance, devise, gift, pledge, hypothecation, encumbrance, or other disposition, direct or indirect, voluntary or involuntary, in trust or otherwise, and as a verb has a corresponding meaning.

ARTICLE 3 — PROTECTED SERIES

3.1 Establishment. With the affirmative vote or consent of **all** Members, the Company may establish one or more Protected Series by causing a Protected Series Designation to be signed and filed with the Department as provided in s. 605.2201, Florida Statutes. At or before the filing of each Protected Series Designation, the Members shall adopt a Series Exhibit for the new Protected Series. The Administrative Member is authorized to execute and file each Protected Series

Designation approved under this Section. Each Protected Series shall be established without Associated Members.

3.2 Status of Each Protected Series. As provided by the Act, each Protected Series:

- (a) is a "person" for purposes of the Act and the Uniform Commercial Code, distinct from the Company, from every other Protected Series, and from each Member;
- (b) may, in its own name, conduct any activity in furtherance of its purpose, exercise the powers described in Section 1.4, and sue and be sued;
- (c) is **not** a separate legal entity capable of existing independently of the Company, may not be a member of the Company, may not itself designate a protected series, and may not merge, convert, domesticate, or engage in an interest exchange except as ss. 605.2602 and 605.2605–605.2607, Florida Statutes, permit; and
- (d) shall be governed by this Agreement, applied to that Protected Series as though the Protected Series were a separate limited liability company, except as its Series Exhibit expressly provides otherwise and except as the Act requires otherwise.

3.3 Limitation of Liability Among Series (Statutory Shields). Consistent with s. 605.2401, Florida Statutes:

- (a) A debt, obligation, or other liability of the Company is solely the debt, obligation, or liability of the Company, and is enforceable only against the Associated Assets of the Company;
- (b) A debt, obligation, or other liability of a Protected Series is solely the debt, obligation, or liability of that Protected Series, and is enforceable only against the Associated Assets of that Protected Series;
- (c) No Protected Series is liable for, and the Associated Assets of a Protected Series are not available to satisfy, any debt, obligation, or liability of the Company or of any other Protected Series; and the Company is not liable for, and the Associated Assets of the Company are not available to satisfy, any debt, obligation, or liability of any Protected Series; and
- (d) No Member is personally liable, directly or indirectly, by way of contribution or otherwise, for any debt, obligation, or liability of the Company or of any Protected Series solely by reason of being or acting as a member or protected-series manager.

3.4 Dissolution of a Protected Series Distinguished. The dissolution and winding up of a Protected Series does not, by itself, cause the dissolution of the Company or of any other Protected Series. The dissolution of the Company causes the dissolution of every Protected Series, and the winding up of the Company is not complete until each Protected Series is wound up.

3.5 Series Exhibits Control Series Terms. The terms specific to each Protected Series — including its name, purpose, capital, and any variations from the default rules of this Agreement

— are set forth in its Series Exhibit. In the event of a conflict between a Series Exhibit and this Agreement with respect to the Protected Series to which the Series Exhibit relates, the Series Exhibit controls, except that no Series Exhibit may vary a provision of the Act that may not be varied by an operating agreement (see s. 605.2107, Florida Statutes), the provisions of Article 8, or the provisions of Article 9.

3.6 Company as Owner.

(a) **Ownership.** The Company owns all of the protected-series transferable interests of each Protected Series, as provided in s. 605.2303(1)-(3), Florida Statutes. Every distribution made by a Protected Series is made to the Company.

(b) **Transferee provisions inapplicable to the Company.** Section 605.2303(4), Florida Statutes, applies to the Company, in its capacity as owner of a protected-series transferable interest, any provision of this Agreement that applies to a protected-series transferee. No provision of this Agreement restricting the rights of a transferee applies to the Company in that capacity, and nothing in this Agreement limits the Company's rights to manage, direct, receive distributions from, or obtain the records and information of any Protected Series.

(c) **No transfer of a protected-series transferable interest.** The Company shall not transfer, assign, pledge, encumber, or otherwise dispose of all or any part of a protected-series transferable interest of any Protected Series to any person, and no Protected Series shall issue a protected-series transferable interest to any person other than the Company. Any purported transfer or issuance in violation of this paragraph is null and void ab initio and shall be given no force or effect for any purpose.

ARTICLE 4 — MEMBERS; VOTING; MEMBER DUTIES

4.1 Members; Percentage Interests. The Members and their Percentage Interests are set forth on Exhibit A. Membership interests are of a single class and are expressed as percentages; no certificates shall be issued unless a Majority in Interest determines otherwise. Each Member's interest in the Company is personal property for all purposes.

4.2 No Series-Level Ownership. No Member is an Associated Member of any Protected Series, and no Member holds a protected-series transferable interest. Each Protected Series is wholly owned by the Company as provided in Section 3.6. Every Member's economic rights in every Protected Series arise solely through the Member's Percentage Interest in the Company, so that all Members participate in every Protected Series identically and in proportion to their Percentage Interests at all times.

4.3 Voting. Each Member votes in proportion to the Member's Percentage Interest on matters as to which Members are entitled to vote or consent at the Company level. Except where this Agreement or a non-variable provision of the Act requires a greater vote, the act of a Majority in Interest constitutes the act of the Members. A Membership Interest owned by spouses as tenants

by the entirety or as joint tenants with right of survivorship shall be voted only by the consensus of both spouses; neither spouse acting alone may vote the interest except as the other spouse's attorney-in-fact under a duly executed power of attorney.

4.4 Meetings; Written Consents. No regular meetings are required. Any Member may call a meeting of the Members on at least five (5) days' written notice stating the purpose. Members may participate by any means of remote communication by which all participants can hear one another. Any action that may be taken at a meeting may be taken without a meeting by a written consent signed by Members holding the Percentage Interests required to approve the action, delivered to the Company and maintained with its records, with prompt notice to any non-consenting Member.

4.5 Limited Liability; No Agency. No Member shall be personally liable for any debt, obligation, or liability of the Company or of any Protected Series, whether arising in contract, tort, or otherwise, solely by reason of being a Member. No Member is an agent of the Company or of any Protected Series solely by reason of being a member.

4.6 Duty to Participate in Governance. Each Member shall materially participate in the governance of the Company and of each Protected Series, including by voting or consenting in a timely manner on matters submitted to the Members, attending meetings duly called under Section 4.4 in person or by remote means, furnishing information reasonably requested by the Administrative Member for the Company's or a Protected Series' filings, records, and tax reporting, and executing and delivering instruments reasonably required to carry out actions duly approved under this Agreement.

4.7 Competition. [SELECT ONE ALTERNATIVE — see Instructions]

[] Alternative A — Noncompetition. Before the dissolution of the Company, no Member shall compete with the Company or with any Protected Series in the conduct of their activities and affairs, consistent with the standard described in s. 605.04091(2)(c), Florida Statutes. This Section does not prohibit a Member from engaging in any business or venture that does not so compete, and neither the Company, any Protected Series, nor any Member shall have any right in such a venture or its income by virtue of this Agreement.

[] Alternative B — Competition Permitted. Each Member may engage in and possess interests in other business ventures of every kind, whether or not competitive with the activities of the Company or of any Protected Series. Engaging in such ventures shall not be deemed to violate this Agreement or any duty under the Act, no Member is obligated to offer any business opportunity to the Company, any Protected Series, or any other Member, and neither the Company, any Protected Series, nor any Member shall have any right in such ventures or their income by virtue of this Agreement. *(Retain the selected Alternative and delete the other. If Alternative B is selected, replace Section 11.1(c) with "(c) [Reserved.]" — do not renumber.)*

4.8 Confidentiality. Each Member shall hold in confidence, and shall not disclose or use other than for purposes of the Company or the applicable Protected Series, all confidential information

of the Company and of each Protected Series, including financial records, customer and tenant information, contracts, and the contents of the records maintained under Article 8, except for disclosures required by law or made to the Member's professional advisors who are bound to confidentiality.

4.9 Non-Disparagement; No Interference. No Member shall hinder or delay the activities and affairs of the Company or of any Protected Series, or slander, defame, or otherwise tarnish the reputation of the Company or of any Protected Series.

4.10 Information Rights. Each Member has the information and inspection rights provided by the Act with respect to the Company. The records of the Company that each Member may inspect include the records maintained under Article 8 for every Protected Series.

4.11 Transfer on Death Designation. Each Member's Membership Interest is "registered" with the Company within the meaning of s. 711.501(7), Florida Statutes. Exhibit A serves as the initial "registration in beneficiary form" under ss. 711.50–711.512, Florida Statutes, and reflects each Member's designation, if any, of the person or persons who will become the owner of that Member's Membership Interest upon that Member's death. Subject to Section 9.3(b), a Member who is an individual may designate any person or entity as a beneficiary. A designation may name a backup beneficiary to take if the first beneficiary does not survive the Member. Members who hold a Membership Interest jointly as tenants in common may not designate a TOD beneficiary. A Member may change, delete, or add a TOD designation by a signed writing, witnessed by two witnesses, delivered to the Administrative Member; the change is effective upon receipt unless the Administrative Member objects in writing within seven (7) days, and the Administrative Member shall thereafter update Exhibit A (though updating is not required for effectiveness). Upon the designating Member's death, the designated beneficiary automatically succeeds to the deceased Member's transferable interest — including the economic rights of the deceased Member's Percentage Interest — taking subject to this Agreement, and holds the rights of a transferee described in Section 10.3 until admitted as a Member. A beneficiary is admitted as a Member upon delivery to the Company of a written agreement to be bound by this Agreement and the written consent of a Majority in Interest of the Members other than the deceased Member.

4.12 Incapacity of a Member. While a Member is Incapacitated, that Member's rights under this Agreement — including the right to vote, to consent, and to sign any instrument — are exercised by the Member's agent under a durable power of attorney conferring that authority or, if there is none, by the Member's court-appointed guardian. The Company and the other Members may rely on a certified copy of the power of attorney or of the letters of guardianship without further inquiry.

ARTICLE 5 — MANAGEMENT BY THE MEMBERS

5.1 Member-Managed. The Company is **member-managed** as provided in its Articles of Organization and this Agreement. The management and conduct of the activities and affairs of the

Company are vested in the Members. There is no manager, and no person shall be designated or hold out as a manager of the Company or of any Protected Series.

5.2 Management of Each Protected Series. Each Protected Series is managed by the Members. As permitted by s. 605.2107(1)(n), Florida Statutes, this Section varies s. 605.2304(2) so that the Members, rather than the Company, are the protected-series managers of each Protected Series. Every decision with respect to a Protected Series is made by a Majority in Interest of the Members as provided in Section 5.3, and the Administrative Member performs for each Protected Series the ministerial functions described in Section 5.8. The Members have, with respect to each Protected Series, the rights, powers, and duties of protected-series managers under the Act, subject to this Agreement and the Series Exhibit.

5.3 Voting; Decisions. Each Member's vote is proportionate to that Member's Percentage Interest. Except where this Agreement or the Act requires a greater vote, any act may be undertaken, and any difference among the Members may be decided, by a Majority in Interest — whether the act is within or outside the ordinary course of the activities and affairs of the Company or the applicable Protected Series.

5.4 Authority to Act; Limits on Authority. Each Member is an agent of the Company for the purpose of its activities and affairs to the extent provided by the Act. As among the Members, and notwithstanding that authority:

- (a) no Member acting alone has actual authority to undertake any act outside the ordinary course of the activities and affairs of the Company or of a Protected Series, or any act listed in Section 5.5, without the approval there stated;
- (b) no Member acting alone has actual authority to sell, convey, mortgage, pledge, or otherwise encumber any interest in real property of the Company or of any Protected Series, or to execute any instrument affecting such an interest, without the consent of a Majority in Interest; and
- (c) a Member who exceeds the authority conferred by this Agreement is liable to the Company or the affected Protected Series for any loss caused by that act, and the Company or Protected Series is entitled to indemnity from that Member.

5.5 Actions Requiring Member Approval. No Member shall do any of the following without the approval stated:

- (a) establish a new Protected Series — the consent of **all Members** (Section 3.1);
- (b) **cause any Associated Asset to become an Associated Asset of the Company or of a different Protected Series** — the consent of a Majority in Interest;
- (c) sell, exchange, or otherwise dispose of all or substantially all of the Associated Assets of the Company or of any Protected Series, other than in the ordinary course of business — the consent of **all Members**;

(d) merge the Company as permitted by the Act — the consent of **all Members**; or file a statement of dissolution of a Protected Series — the approval required by Section 14.1;

(e) admit any additional Member — the approval required by Article 12;

(f) incur, on behalf of the Company or any Protected Series, indebtedness in excess of \$ [THRESHOLD] in a single transaction or series of related transactions, or guarantee the obligation of any person (and no guarantee of the obligations of one Protected Series by another or by the Company shall be made except by an express written instrument approved under this Section) — the consent of **all Members**;

(g) lend money of the Company or of a Protected Series to, or borrow from, a Member or an affiliate of a Member, other than loans under Section 6.5 — the consent of a Majority in Interest of the disinterested Members;

(h) amend this Agreement or any Series Exhibit — the approval required by Section 15.1; or

(i) file, amend, or cancel a statement of authority under s. 605.0302, Florida Statutes, or record a certified copy of one — the consent of **all Members**.

5.6 Standard of Conduct; Exculpation. Each Member shall discharge the duties of a member of a member-managed limited liability company consistent with the Act. No Member shall be liable to the Company, any Protected Series, or any other Member for any act or omission performed or omitted in good faith and in a manner reasonably believed to be within the scope of authority conferred by this Agreement, except for conduct for which exoneration is prohibited by the Act.

5.7 Indemnification. The Company shall indemnify each Member, and each Protected Series shall indemnify the Company and each Member acting for the Company with respect to that Protected Series, to the fullest extent permitted by the Act, against losses, claims, and expenses (including reasonable attorney's fees) incurred by reason of acting in the management of the Company or that Protected Series, except to the extent arising from conduct for which exoneration is prohibited by the Act or from an act exceeding the authority conferred by Section 5.4; **provided, that any indemnification obligation relating to the activities of a particular Protected Series is an Associated Liability of that Protected Series, payable solely from its Associated Assets**, and any indemnification obligation relating to the activities of the Company generally is payable solely from the Associated Assets of the Company.

5.8 Administrative Member. A Majority in Interest may designate one Member as the "Administrative Member" to perform the ministerial functions assigned to that role by this Agreement, including making filings with the Department, maintaining the records required by Article 8, preparing and filing tax returns, and updating Exhibit A and the Series Exhibits to reflect changes properly made. The Administrative Member serves at the pleasure of a Majority in Interest, has no authority beyond that expressly conferred by this Agreement or by a Majority in Interest, and is not a manager of the Company. Until a designation is made, and whenever the

office is vacant, the functions of the Administrative Member shall be performed by a Majority in Interest.

5.9 Statement of Authority. With the consent of all Members required by Section 5.5(i), the Members may cause the Company to file with the Department a statement of authority under s. 605.0302, Florida Statutes, stating the authority, or the limitations on the authority, of Members to transfer or encumber real property held in the name of the Company or of a Protected Series, and may cause a certified copy of that statement to be recorded in the official records of any county in which the real property is located. A statement so filed shall be consistent with this Agreement, and the Members shall cause it to be amended or cancelled as necessary to keep it accurate. The limitations in Section 5.4(b) apply among the Members whether or not a statement of authority is filed or recorded.

5.10 Compensation; Reimbursement; Shared Expenses. No Member shall receive a salary for acting in the management of the Company or of a Protected Series unless a Majority in Interest consents in writing to compensation. Each Member shall be reimbursed for reasonable expenses properly incurred on behalf of the Company or the applicable Protected Series. Costs and expenses that benefit the Company and one or more Protected Series (including formation and filing fees, registered agent fees, accounting, insurance, and administrative overhead) shall be allocated among the Company and the Protected Series benefited on a reasonable and consistent basis determined by a Majority in Interest — by specific attribution where practicable and otherwise pro rata or by such other reasonable formula as a Majority in Interest adopts — and the allocation shall be recorded in the records maintained under Article 8.

ARTICLE 6 — CAPITAL

6.1 Initial Contributions. Each Member's contributions to the Company are set forth on Exhibit A. Contributions to a Protected Series are made by the Company and are set forth in the applicable Series Exhibit. Each contribution shall identify whether it is made to the Company or to a specific Protected Series, and shall be deposited to, and recorded in the records of, the recipient. A promise by a Member to make a contribution is enforceable only if set out in a writing signed by the Member.

6.2 Additional Capital Contributions. [OPTIONAL PROVISION — include or omit; see Instructions] Upon the approval of a Majority in Interest, each Member shall have the duty and obligation to contribute additional capital to the Company or to the affected Protected Series, in proportion to the Members' Percentage Interests, in the aggregate amount so approved, payable within thirty (30) days after written notice of the approved call; provided, that unless approved by all Members, no Member shall be required to contribute more than \$[CAP] in the aggregate in any calendar year under this Section. This obligation is a material, unperformed, future obligation of each Member within the meaning of Section 11.1. *(To omit this provision, replace the text of this Section 6.2 and of Section 6.3 with "[Reserved.]" and replace Section 11.1(a) with "(a)*

[Reserved.]" — do not renumber any section. If omitted, no Member has any obligation to contribute capital beyond Section 6.1.)

6.3 Failure to Contribute. If a Member fails to pay an additional capital contribution required under Section 6.2 when due, the Company (or the affected Protected Series) may pursue any remedy available at law or in equity for the failure, and in addition, the non-defaulting Members who elect to do so may advance the defaulted amount, in which case the Percentage Interests of the defaulting and advancing Members shall be adjusted to reflect the aggregate capital contributed by each Member following the advance.

6.4 No Interest; No Withdrawal. No interest shall be paid on any contribution. No Member may withdraw or demand the return of any contribution except as this Agreement provides.

6.5 Member Loans. A Member may lend funds to the Company or to a specific Protected Series upon commercially reasonable terms evidenced by a written instrument identifying the borrower. A loan is not a contribution, and shall be an Associated Liability solely of the borrowing Protected Series or of the Company, as applicable.

6.6 Contribution Records; Identical Rights. The Company shall maintain a record of each Member's contributions to the Company and to each Protected Series. Contributions do not bear interest and confer no priority or preference of any kind: every Membership Interest carries rights to allocations, distributions, and liquidation proceeds identical in proportion to Percentage Interests. Nothing in this Agreement personally obligates any Member to contribute capital beyond the contributions required by Sections 6.1 and 6.2.

6.7 No Right to Specific Property. No Member has any right to demand or receive any distribution in any specific property of the Company or of any Protected Series.

ARTICLE 7 — ALLOCATIONS AND DISTRIBUTIONS

7.1 Allocations. All items of income, gain, loss, deduction, and credit of the Company and of each Protected Series shall be allocated among the Members strictly pro rata in accordance with their Percentage Interests, consistent with sections 1366 and 1377 of the Internal Revenue Code of 1986, as amended (the "Code").

7.2 Distributions. A Majority in Interest may from time to time determine the extent to which cash on hand of the Company or of a Protected Series exceeds current and anticipated needs, including operating expenses, debt service, acquisitions, and reserves, and may distribute any such excess. Distributions in respect of a Protected Series shall be made **solely from the Associated Assets of that Protected Series, and solely to the Company**; distributions in respect of the Company shall be made solely from the Associated Assets of the Company, to the Members strictly pro rata in accordance with their Percentage Interests, and every such distribution shall confer identical rights on every Membership Interest. Each distribution shall be recorded in the records maintained under Article 8, identifying its source.

7.3 Tax Distributions. To the extent of available cash of the Company or the applicable Protected Series, a Majority in Interest may cause distributions to be made intended to enable the Members to satisfy federal and state income tax liabilities attributable to the Company's income, made strictly pro rata in accordance with Percentage Interests, and is authorized to pay any such amount directly to the government agency responsible for collection on a Member's behalf, with any amount so paid treated as distributed to that Member. A tax distribution funded from the Associated Assets of a Protected Series shall be made by that Protected Series to the Company and distributed by the Company to the Members, and is treated as an advance against later distributions under Section 7.2.

ARTICLE 8 — RECORDS

8.1 Records. The Administrative Member shall maintain, for the Company and for each Protected Series, the records described in this Article. Members' inspection rights are as stated in Section 4.10.

8.2 Asset Association Records. The Administrative Member shall create and maintain, for the Company and for each Protected Series, records that state the name of the Company or of the applicable Protected Series and describe each of its assets with sufficient specificity to permit a **disinterested, reasonable individual** to:

- (a) identify the asset and distinguish it from any other asset of the Company, of that Protected Series, and of every other Protected Series;
- (b) determine when and from which person the asset was acquired, or how the asset otherwise became an asset of the Company or that Protected Series; and
- (c) for any asset acquired from the Company or from another Protected Series, determine the consideration paid, the payor, and the payee.

Records may be organized by specific listing, category, type, quantity, or computational or allocative formula or procedure (including a percentage or share of any asset), or in any other reasonable manner, consistent with s. 605.2301(4), Florida Statutes, provided the standard of this Section is met.

8.3 Real Property. A properly recorded instrument naming the acquiring or conveying Protected Series (by its full statutory name) or the Company, as applicable, serves as an association record and is conclusive of the signer's authority in favor of a person giving value without knowledge of a lack of authority (ss. 605.2301(2)(b) and 605.2301(3)(b), Florida Statutes). Where an interest in real property is held through a representative, nominee, or similar arrangement as permitted by s. 605.2301(5), Florida Statutes, the arrangement shall be documented under Section 8.4, and the association of the interest shall be established by those records.

8.4 Holding Associated Assets. An Associated Asset may be held directly, or indirectly through a representative, nominee, or similar arrangement, as permitted by s. 605.2301(5), Florida Statutes.

Any such indirect arrangement shall be documented in the records maintained under this Article, identifying the holder, the Protected Series or the Company for which the asset is held, and the date the arrangement began. No property of the Company or of any Protected Series shall be held in the individual name of any Member other than under an arrangement documented under this Section.

8.5 Standing Association Rules; Savings Provisions.

(a) **Association; interpretation.** Section 605.2301, Florida Statutes, requires records, not any particular record: it is satisfied by records that, read together, permit a disinterested, reasonable individual to make the determinations described in Section 8.2, and s. 605.2301(4), Florida Statutes, permits those records to be organized by specific listing, category, type, quantity, or computational or allocative formula or procedure, or in any other reasonable manner. As used in this Article, "record" has the meaning given in s. 605.0102(59), Florida Statutes, and shall be construed broadly to include anything of any type, kind, or nature that could reasonably associate an asset, debt, or any other thing with a Protected Series or the Company. Accordingly: (i) this Agreement, each Series Exhibit, each asset schedule, and the account, titling, tax, insurance, and transaction records of the Company or of a Protected Series are records within the meaning of s. 605.2301, Florida Statutes, may be read together and in combination to satisfy its requirements, and no single document, form, or sequence is required; (ii) an asset is an Associated Asset of the Company or of the Protected Series that any such record identifies, from the date the asset was acquired or otherwise became an asset; (iii) association established by any record is not defeated by the absence or incompleteness of any other record; (iv) the standing rules in paragraph (b) are a procedure adopted under s. 605.2301(4), Florida Statutes, and apply to every asset they reach, whether or not any other record exists; and (v) where the records permit more than one reading, the reading that associates an asset with the Company or Protected Series that acquired, holds, or uses it controls. This Agreement shall be interpreted and applied to give the fullest effect permitted by law to the association of assets under this Article, to the separateness of the Company and of each Protected Series, and to the limitations of liability described in Section 3.3.

(b) **Standing association rules.** As a standing procedure adopted pursuant to s. 605.2301(4), Florida Statutes, and without limiting any other record: (i) an asset acquired by an instrument naming a Protected Series, or titled in the name of a Protected Series, is an Associated Asset of that Protected Series from the date of acquisition; (ii) an asset acquired with consideration paid from a deposit account of a Protected Series is an Associated Asset of that Protected Series; (iii) funds on deposit in an account established in the name of a Protected Series, and interest thereon, are Associated Assets of that Protected Series; (iv) the income, rents, profits, proceeds, and products of, the insurance proceeds relating to, and every replacement or substitution for, an Associated Asset are Associated Assets of the same person; and (v) every asset acquired in the name of the Company, and every asset not associated with a Protected Series under clauses (i) through (iv) or under any other record maintained under this Article, is an Associated Asset of the Company.

(c) **Correction of records.** The Administrative Member may, and upon discovery of any inaccuracy or omission shall, supplement or correct any record maintained under this Article so that it accurately reflects the association of assets and liabilities, and records as so supplemented or corrected shall be given effect to the fullest extent permitted by law. A record supplemented or corrected under this paragraph relates back to, and is given effect from, the date of the record it supplements or corrects, to the fullest extent permitted by law.

(d) **Reformation; severability in favor of association and separateness.** If any provision of this Agreement or of any Series Exhibit, or any act taken under either, would otherwise be construed to impair the association of an asset under this Article, the separateness of the Company or of any Protected Series, or the limitations of liability described in Section 3.3, this Agreement shall be applied and, to the minimum extent necessary, deemed modified so as to preserve them, and the provision or act shall be given effect as so modified from the time it was made. To the extent a provision cannot be so conformed, it is null and void ab initio and shall be given no force or effect for any purpose, and every other provision of this Agreement and of each Series Exhibit remains in full force.

8.6 Movement of an Asset Between Protected Series. If an Associated Asset of a Protected Series becomes an Associated Asset of another Protected Series, however the transaction is denominated, then to the extent the fair market value of what one Protected Series gives exceeds the fair market value of what it receives, the excess is deemed for all purposes of this Agreement to have been distributed by that Protected Series to the Company as provided in Section 7.2 and, immediately thereafter, contributed by the Company to the other Protected Series as provided in Section 6.1.

ARTICLE 9 — TAX MATTERS

9.1 S Corporation Status. The Company has elected, or intends to elect, classification as an association taxable as a corporation and S corporation status under section 1362 of the Code, and it is intended that the election remain continuously in effect. Each Member shall execute the consents and other instruments (including IRS Form 2553) necessary or appropriate to make and maintain the election, and no election shall be revoked without the affirmative vote or consent of all Members. Each Protected Series is wholly owned by the Company. If a Protected Series is treated as an entity separate from the Company for federal income tax purposes, it is intended that the Protected Series be disregarded as an entity separate from its owner, so that its items of income, gain, loss, deduction, and credit are reported by the Company. No member of the Company shall take a position inconsistent with this Section on any return without the written consent of all members.

9.2 Returns; Information. The Administrative Member shall cause to be prepared and filed all tax returns required of the Company (including Form 1120-S) and of each Protected Series, if necessary or required, and shall deliver to each Member, after the end of each fiscal year, the information (including Schedule K-1) necessary for the Member's returns.

9.3 Protecting the Election. While the S corporation election is in effect: (a) no Transfer of any Membership Interest or transferable interest may be made to any person who is not an eligible S corporation shareholder, or that would cause the number of shareholders to exceed the limit of section 1361 of the Code, and any purported Transfer in violation of this clause is null and void ab initio and shall be given no force or effect for any purpose; (b) a TOD designation under Section 4.11 is effective only in favor of a beneficiary that is an eligible S corporation shareholder; and (c) no Protected Series may be established, and no interest issued or adjusted, except consistent with Section 3.6(c), Section 4.2, and the one-class-of-stock requirement of section 1361 of the Code, and any such establishment, issuance, or adjustment in violation of this clause is null and void ab initio and shall be given no force or effect for any purpose.

9.4 S Corporation Status; Intent; Savings Clause.

(a) Intent. It is the express intent of the Members that the Company qualify at all times as a small business corporation eligible for a valid election under section 1362 of the Code, that the election be and remain in effect, and that this Agreement, each Series Exhibit, and every other agreement among the Members relating to the Company or any Protected Series be interpreted, applied, and administered consistent with that intent.

(b) Offending provisions are void ab initio. Any provision of this Agreement, of any Series Exhibit, or of any other agreement among the Members relating to the Company or any Protected Series that would (i) cause the Company to fail to qualify as a small business corporation, (ii) cause the outstanding Membership Interests to confer other than identical rights to distributions and liquidation proceeds, or (iii) otherwise cause the election to be invalid or to terminate, is null and void ab initio and shall be given no force or effect for any purpose, as though it had never been included.

(c) Offending acts are void. No Member, and no Protected Series, shall take any action, or omit to take any action, that would cause the election to be invalid or to terminate; any purported action or omission in violation of this subsection is null and void ab initio and shall be given no force or effect for any purpose.

(d) Pro rata in all events. Notwithstanding any other provision of this Agreement or of any Series Exhibit, all allocations and distributions — including distributions in liquidation of the Company or of any Protected Series — shall be made strictly pro rata in accordance with Percentage Interests, and every Membership Interest confers identical rights to distributions and liquidation proceeds.

(e) Conforming construction. To the extent any provision can be conformed rather than voided, this Agreement shall be applied and, to the minimum extent necessary, deemed modified so that the Company has a single class of ownership and the election remains valid.

(f) Relief for inadvertent termination. If the election nonetheless terminates or is determined to be invalid, the Members shall cooperate to obtain relief for an inadvertent termination or invalid

election under section 1362(f) of the Code, including making the adjustments and taking the actions the Internal Revenue Service may require.

9.5 Other Elections. A Majority in Interest may make, change, or revoke any other tax election for the Company or any Protected Series that is consistent with maintaining the S corporation election and that it determines to be in the best interests of the Members as a whole.

9.6 Fiscal Year. The fiscal year of the Company and of each Protected Series is the calendar year unless another year is permitted for an S corporation under section 1378 of the Code and selected by a Majority in Interest.

ARTICLE 10 — TRANSFERS; CREDITOR PROVISIONS

10.1 Restriction on Transfer. No Member shall Transfer all or any portion of a Membership Interest, or any right to receive distributions from the Company or any Protected Series, except (a) a Transfer to an Immediate Family Member of the transferring Member made in compliance with Section 10.2, (b) a Transfer effective at death pursuant to the transferring Member's TOD designation under Section 4.11, or (c) another Transfer made with the prior written consent of a Majority in Interest of the Members other than the transferring Member. Any purported Transfer in violation of this Article is void to the fullest extent permitted by law, and the transferee acquires no rights other than those, if any, mandated by the Act.

10.2 Permitted Family Transfers. A Transfer of all or part of a Membership Interest to an Immediate Family Member of the transferring Member is permitted, provided the transferee delivers to the Company a signed agreement to be bound by this Agreement. The transferee holds the transferred interest as a transferee under Section 10.3 unless and until admitted as a Member under Section 12.1.

10.3 Rights of Transferees. A transferee (including a permitted family transferee) who is not admitted as a Member under Article 12 holds only the transferable interest — the right to receive the distributions that would otherwise be paid to the transferor with respect to the transferred interest — and has no right to vote, to participate in management, to inspect records, or to exercise any other right of a member, except as the Act mandates. A transferred interest remains subject to this Agreement in the hands of every transferee.

10.4 Involuntary Transfers; Option to Acquire. Upon any Involuntary Transfer or any event that would result in an Involuntary Transfer of all or part of a Membership Interest, the Company shall have the option, exercisable by a Majority in Interest of the Members other than the affected Member at any time within ninety (90) days after the Company receives written notice that the Involuntary Transfer has occurred, to acquire the interest that is the subject of the Involuntary Transfer at its fair value. Fair value shall be the value agreed in writing between the Company and the holder of the interest or, absent agreement within thirty (30) days after the option is exercised, the value determined by an independent appraiser jointly selected by the Company and the holder within fifteen (15) days after the end of that thirty-day period (and, if they fail to agree within that

time, by an appraiser selected by the two appraisers each of them then designates within a further ten (10) days), who shall hold the MAI designation if the assets principally concerned are real property, who shall have no material financial or professional relationship with any Member, and who shall deliver a written determination within forty-five (45) days after selection. That determination is final and binding, and the appraiser's fee shall be borne one-half by the Company and one-half by the holder. The purchase price is payable on commercially reasonable terms determined by a Majority in Interest, including payment in installments over a period of up to five (5) years bearing interest at the applicable federal rate. If the Company does not exercise its option, the Members other than the affected Member may, within thirty (30) days after the Company's option lapses, elect to acquire the interest on the same terms, in proportion to their Percentage Interests or as they otherwise agree. Pending exercise or lapse of the options, the holder of the interest has only the rights of a transferee described in Section 10.3.

10.5 No Dissociation by Transfer Alone. A Transfer does not by itself dissociate a Member or dissolve the Company or any Protected Series.

10.6 Charging Order — Exclusive Remedy. As provided in ss. 605.0502 and 605.0503, Florida Statutes, a charging order is the sole and exclusive remedy by which a judgment creditor of a Member or of a transferee may satisfy a judgment from the judgment debtor's Membership Interest or transferable interest, whether in the Company or in respect of any Protected Series. A judgment creditor or other holder of a charging order has only the right to receive distributions to which the judgment debtor would otherwise be entitled, has none of the rights of a member or manager, is not entitled to any accounting, inspection, or information rights except as the Act mandates, and, for so long as the Company has more than one member, may not foreclose upon the charged interest. Nothing in this Agreement enlarges any remedy of any creditor beyond those provided by the Act.

ARTICLE 11 — EXECUTORY CONTRACT

11.1 Executory Contract. The parties agree that this Agreement constitutes an executory contract and shall be governed by 11 U.S.C. §365 in connection with the bankruptcy of the Company or any Member because, among other provisions and obligations, this Agreement imposes on each Member the following affirmative duties (each of which constitutes a material unperformed, future obligation): (a) *[include only if optional Section 6.2 is included; otherwise replace with "(a) [Reserved.]"*] upon approval of a Majority in Interest as provided in Section 6.2, the duty and obligation of each Member to contribute additional capital to the Company or the affected Protected Series; (b) the duty and obligation of each Member to materially participate in the governance of the Company and of each Protected Series, as provided in Section 4.6; (c) *[include only if Section 4.7 Alternative A is selected; otherwise replace with "(c) [Reserved.]"*] the duty and obligation of each Member not to compete with the Company or with any Protected Series in the conduct of their activities and affairs before the dissolution of the Company, as provided in Section 4.7 and consistent with s. 605.04091(2)(c), Florida Statutes; (d) the duty and obligation of each

Member not to disclose confidential information, as provided in Section 4.8; and (e) the duty and obligation of each Member not to hinder, delay, slander, or tarnish the reputation of the Company or of any Protected Series, as provided in Section 4.9. The failure of a Member to perform the duties and obligations set forth herein releases and excuses the mutual duties and obligations owed by the Company and the other Members to such defaulting Member.

11.2 Personal Service Agreement; No Assumption or Assignment. In accordance with *In re Soderstrom*, 484 B.R. 874 (M.D. Fla. 2013), this Agreement is a personal service agreement due to the managerial and governance duties and obligations owed by each Member, and a bankruptcy trustee cannot assume or assign a debtor Member's interest in the Company in accordance with 11 U.S.C. §365(c)(1) without the prior written consent of the other Members.

11.3 Compliance upon Assumption or Rejection. Notwithstanding the foregoing, to the extent that a trustee of a Member's bankruptcy is allowed either to assume or reject a debtor Member's interest in the Company governed by this Agreement, such action shall comply with the time period set forth in 11 U.S.C. §365(d), and if the trustee assumes such debtor Member's interest, such trustee shall comply with the terms of this Agreement and Florida law governing this Agreement, including, without limitation, the restrictions of the rights of a creditor of a Member or transferee pursuant to ss. 605.0502 and 605.0503, Florida Statutes.

ARTICLE 12 — ADMISSION OF MEMBERS; ASSOCIATION WITH PROTECTED SERIES

12.1 Admission of Members. A person may be admitted as a Member of the Company only with the written consent of **all** Members and upon the person's delivery of a signed agreement to be bound by this Agreement, and only if that person is an eligible S corporation shareholder under section 1361 of the Code and the admission would not cause the number of shareholders to exceed the limit of that section, except that (a) a TOD beneficiary is admitted as provided in Section 4.11, and (b) a permitted family transferee under Section 10.2 may be admitted with the written consent of a Majority in Interest of the Members other than the transferor. Any purported admission in violation of this Section is null and void ab initio and shall be given no force or effect for any purpose.

12.2 No Association with a Protected Series. No Member may be associated with a Protected Series. A Protected Series may not be established with, and may not admit, an Associated Member.

12.3 Continuation on Termination of Last Member. Upon the termination of the membership of the last remaining member of the Company, the Company shall not be dissolved, and the legal representative of the last remaining member shall agree in writing to continue the Company, and the representative (or an Immediate Family Member designated by the representative who is not a creditor of the last remaining member) shall be admitted as a member effective as of the terminating event, all as permitted by the Act.

ARTICLE 13 — WITHDRAWAL; DEADLOCK

13.1 No Voluntary Withdrawal. No Member may voluntarily withdraw, resign, or dissociate from the Company before the dissolution and winding up of the Company without the written consent of all other Members. A Member's dissociation, whether or not wrongful, does not entitle the dissociated Member to any distribution or payment for the Member's interest except as this Agreement or the Act provides, and a dissociated Member (or the Member's successor) holds thereafter only the rights of a transferee described in Section 10.3.

13.2 Deadlock; Buy-Sell Election. [OPTIONAL PROVISION — see Instructions; to omit, replace the text of this Section with "[Reserved.]" — do not renumber]

(a) A "Deadlock" exists if the Members are unable, by the vote required under this Agreement, to approve or reject a matter duly submitted for approval, and the inability continues for sixty (60) days after any Member delivers written notice to the Company and the other Members describing the matter and stating that a Deadlock exists.

(b) During a Deadlock, any Member holding twenty-five percent (25%) or more of the Percentage Interests (the "Offeror") may deliver to the other Members (the "Offerees") a written offer (the "Buy-Sell Offer") stating a single gross valuation for the Company and all Protected Series, in cash. The Buy-Sell Offer constitutes both (i) an offer by the Offeror to purchase all of the Offerees' Membership Interests at their proportionate share of that valuation, and (ii) an offer by the Offeror to sell all of the Offeror's Membership Interest to the Offerees at the Offeror's proportionate share of that valuation.

(c) Within forty-five (45) days after delivery of the Buy-Sell Offer, the Offerees (acting jointly, or severally in proportion to their Percentage Interests among those electing) shall elect in writing either to sell their Membership Interests to the Offeror, or to purchase the Offeror's Membership Interest, in each case at the price determined under the Buy-Sell Offer. Failure to deliver a timely election is an election to sell.

(d) The closing shall occur within sixty (60) days after the election, for cash unless the parties agree otherwise. At closing, the selling Members shall Transfer their Membership Interests free of liens, and the purchasing Member(s) shall be substituted with respect to the transferred interests. If the purchasing party fails to close, the other party may elect to purchase on the same terms, and the defaulting party bears the costs of the failed closing.

(e) This Section does not apply to any matter for which the Act or this Agreement requires the consent of all Members and a Member's withholding of consent is expressly permitted by the Act, and does not limit any Member's right to seek judicial dissolution as provided by the Act.

(f) This Section is a deadlock sale provision within the meaning of s. 605.0702(2), Florida Statutes, providing for a purchase and sale of interests. Delivery of a Buy-Sell Offer under subsection (b) initiates this deadlock sale provision as of the date of delivery.

ARTICLE 14 — DISSOLUTION AND WINDING UP

14.1 Dissolution of a Protected Series. A Protected Series is dissolved, and its activities and affairs shall be wound up, upon the first to occur of: (a) the dissolution of the Company; (b) an event or circumstance specified in its Series Exhibit; (c) the affirmative vote or consent of a Majority in Interest; or (d) entry of a judicial order dissolving the Protected Series as provided by the Act.

14.2 Winding Up a Protected Series. Upon dissolution of a Protected Series, a Majority in Interest of the Members (or a person they designate) shall wind up its activities and affairs in the manner provided by the Act for winding up a limited liability company, applied to that Protected Series. Its Associated Assets shall be applied: first, to pay or provide for its Associated Liabilities to creditors other than Members; next, to pay or provide for its Associated Liabilities to Members as creditors, to the extent permitted by law; and finally, the balance to the Company. The Administrative Member shall cause any statement or filing required by the Act or the Department in connection with the dissolution of the Protected Series to be made. The winding up of a Protected Series shall not draw upon, and its creditors shall have no recourse to, the Associated Assets of the Company or of any other Protected Series.

14.3 Dissolution of the Company. The Company is dissolved, and its activities and affairs shall be wound up, upon the first to occur of: (a) the written consent of **all** Members; (b) entry of a decree of judicial dissolution under the Act; or (c) any other event that under the Act requires dissolution. The death, incapacity, bankruptcy, dissociation, or withdrawal of a Member does not by itself dissolve the Company. Dissolution of the Company causes the dissolution of each Protected Series, and the winding up of the Company is not complete until the winding up of each Protected Series is complete.

14.4 Winding Up the Company. Upon dissolution of the Company, a person designated by a Majority in Interest shall wind up the Company and each Protected Series. After the winding up of each Protected Series under Section 14.2, the remaining Associated Assets of the Company shall be applied: first, to pay or provide for the Company's Associated Liabilities to creditors other than Members; next, to pay or provide for the Company's Associated Liabilities to Members as creditors; and finally, the balance to the Members in proportion to their Percentage Interests. All distributions in winding up, whether of the Company or of any Protected Series, shall be made in proportion to Percentage Interests, so that every Membership Interest confers identical rights to liquidation proceeds. Articles of dissolution shall be filed as the Act requires, and the Company shall terminate when winding up is complete.

14.5 No Obligation to Contribute; Recourse Limited. No Member shall have any obligation to contribute capital in connection with any winding up (beyond unpaid contributions duly required under Sections 6.1 and 6.2), and each creditor of the Company or of any Protected Series shall look solely to the Associated Assets of its obligor.

ARTICLE 15 — AMENDMENTS; CONSENTS

15.1 Amendments. This Agreement may be amended only by a written instrument signed by **all** Members; provided, that the Administrative Member may amend Exhibit A and the Series Exhibits without further consent solely to record changes duly made under this Agreement (admissions, Transfers, TOD designations, capital adjustments under Section 6.3). Oral, implied, or course-of-dealing amendments are of no effect.

15.2 Action by Written Consent. Any action of the Members under this Agreement may be taken by written consent as provided in Section 4.4.

ARTICLE 16 — MISCELLANEOUS

16.1 Governing Law; Internal Affairs. This Agreement, the internal affairs of the Company and of each Protected Series, and the relations among the Members, the Company, and each Protected Series, are governed by the laws of the State of Florida, without regard to conflict-of-laws principles.

16.2 Venue. Any action or proceeding arising out of or relating to this Agreement, the Company, or any Protected Series shall be brought exclusively in the courts of the county in Florida in which the Company's principal office is located, and each party consents to the jurisdiction of such courts and waives any objection to venue there.

16.3 Severability. If any provision of this Agreement is held invalid or unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remainder of this Agreement shall remain in full force; provided, that nothing in this Agreement shall be construed to vary any provision of the Act that may not be varied by an operating agreement.

16.4 Entire Agreement. This Agreement, including Exhibit A and each Series Exhibit, constitutes the entire agreement governing the Company and each Protected Series and supersedes all prior agreements and understandings with respect to their subject matter.

16.5 Binding Effect. This Agreement binds and benefits the Members and their respective heirs, personal representatives, successors, and permitted assigns, and any person who acquires an interest in the Company or is admitted as a member.

16.6 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts, each of which is an original and all of which together constitute one instrument. Electronic signatures and electronic records have the same effect as originals.

16.7 Notices. Any notice under this Agreement shall be in writing and is effective upon delivery to the recipient's address on Exhibit A (or another address designated in writing), whether delivered personally, by nationally recognized courier, by certified mail, or by e-mail with confirmation of transmission.

16.8 No Third-Party Beneficiaries. This Agreement is for the exclusive benefit of the parties and confers no rights on any creditor or other third party.

16.9 Interpretation. Headings are for convenience only. "Including" means "including without limitation." References to statutes include amendments and successor provisions. Words in the singular include the plural, and words in the plural include the singular, as the context requires.

16.10 Unregistered Interests. The Membership Interests have not been registered under federal or state securities laws and may not be offered, sold, or transferred except in compliance with this Agreement and applicable law.

SIGNATURES

IN WITNESS WHEREOF, the undersigned have executed this Agreement effective as of the date(s) set forth below.

MEMBERS:

[UNIT]

[HOLDING]

[SIGNATORY NAME]

Date: _____

[SIGNATORY NAME]

By: _____

[PRINTED NAME]

[TITLE]

Date: _____

EXHIBIT A — MEMBERS; PERCENTAGE INTERESTS; CONTRIBUTIONS; TOD DESIGNATIONS

Company: [COMPANY NAME], LLC

Member name	Address	Percentage Interest	Initial contribution to the Company	Date
[MEMBER NAME] as [HOLDING]	[MEMBER ADDRESS]	[MEMBER SHARE]	[MEMBER CONTRIBUTION]	[MEMBER DATE]
Total		100%		

Contributed assets:

Asset	Agreed value	Contributed by	Allocated to
[ASSET]	[ASSET VALUE]	[ASSET BY]	[ASSET TO]

Allocation of the Company's capital to the Protected Series:

Protected Series	Assets allocated by the Company	Total
[SERIES]	[CONTRIBUTION]	[SERIES TOTAL]
Retained by the Company	[RETAINED ASSETS]	[RETAINED]

Transfer on Death designations (ss. 711.50–711.512, Fla. Stat.):

Designating Member	TOD beneficiary (eligible S corporation shareholder)	If that beneficiary does not survive the Member
[MEMBER NAME]	[MEMBER TOD] (effective at the death of the last surviving spouse)	[MEMBER TOD BACKUP]

A designation is effective only in favor of a beneficiary that is an eligible S corporation shareholder (Section 9.3(b)).

If no beneficiary is designated, or a designation fails, the Member's interest passes as provided by law, subject to this Agreement.

SERIES EXHIBIT PS-[N]

Protected Series name (exactly as filed with the Department):

[COMPANY NAME], LLC - PS [N]

Item	Terms
Purpose of this Protected Series	Any lawful purpose, including, without limitation, [PURPOSE]
Owner of this Protected Series	The Company. This Protected Series has no Associated Members (ss. 605.2302(1), 605.2303(2), Fla. Stat.).
Managed by	The Members, as protected-series managers (s. 605.2304, Fla. Stat., as varied by Section 5.2 of the Agreement), acting by a Majority in Interest
Contributions to this Protected Series	By the Company: [CONTRIBUTION]
Initial Associated Assets	As set forth on the Asset Schedule attached to this Series Exhibit and completed by the Member(s), together with the records maintained under Article 8.
Special terms (if any)	[None / variations from the base Agreement — may not vary Article 8, Article 9, or non-variable provisions of the Act]

Adopted effective [DATE] by the Company, acting through a Majority in Interest of its Members:

[ADOPTER NAME], Member

[ADOPTER NAME], Member

By: _____

[PRINTED NAME]

[TITLE]

ASSET SCHEDULE — ATTACHMENT TO SERIES EXHIBIT PS-[N]

Complete this schedule for each asset of this Protected Series. Describe each asset so that a stranger could identify it without asking you anything: real property — street address AND legal description, date acquired, and grantor; deposit account — institution, account title, last four digits, and date opened; vehicle — year, make, model, and VIN; equipment — description and serial number; contract — parties and date. For any asset acquired from the Company or from another Protected Series, also state the consideration paid, the payor, and the payee. Add pages as needed; keep this schedule current as assets are acquired and disposed of.

Asset description	Date acquired	Acquired from	Consideration / payor / payee (if from the Company or another series)

Form document — [COMPANY NAME], LLC Operating Agreement (Member-Managed / S Corporation), v1 draft. Statutory citations in this form: ss. 48.062, 605.0102, 605.0302, 605.0502, 605.0503, 605.0702, 605.2101, 605.2103, 605.2107, 605.2201, 605.2301, 605.2302, 605.2303, 605.2304, 605.2401, 605.2602, 605.2605, 605.2607, 605.2802, 605.04091, 711.50, 711.501, 711.512, Fla. Stat.; 11 U.S.C. §365; *In re Soderstrom*, 484 B.R. 874 (M.D. Fla. 2013). Internal Revenue Code sections: 1361, 1362, 1366, 1377, 1378.

[TITLE] of [COMPANY NAME], LLC — generated by MyFloridaSeriesLLC · Master [EDITION]